



Vehicle Safety & Usage Policy Agreement

Employee-Owned/Leased Vehicles

Purpose

This document sets out the terms and conditions associated with employees driving their own vehicles for work purposes. This policy applies to all Johnstone Supply of CNY employees using their vehicles for work.

Definitions

To make sure everyone has a common understanding, the following definitions apply:

- Work-related driving is operating a motor vehicle in the course of your work, including driving to and from Johnstone Supply of CNY work sites and offices, and client or contractor offices or work locations. It may also include other driving approved by your manager. Work-related driving typically does not include commuting from your home to your primary workplace.
- An employee-owned vehicle is a vehicle for which the employee is the registered owner or the sole signatory of a vehicle-lease agreement.

Responsibilities

The President, includes his designated representative, is responsible for the overall implementation of this policy. He/she must:

- consult with the employee and their manager before authorizing an employee to use their own vehicle for work.
- review the policy annually with drivers, and management and make necessary improvements and updates.
- store and track associated documents (signed procedures, copies of vehicle insurance, completed inspection / mileage logs and maintenance records).
- will run a motor vehicle department check annually to determine your driving record.

Managers are responsible to confirm employees and employee-owned vehicles satisfy, and continue to satisfy, the terms and conditions of this policy. Managers will:

- before recommending that an employee use their vehicle for work, confirm the employee is legally authorized to drive, visually inspect the vehicle, provide the employee with a copy of this policy, review it with them and receive a copy with their signed agreement.

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Employee-Owned/Leased Vehicles

- receive and check vehicle insurance, inspection and maintenance records.

Employees are responsible to satisfy the terms and conditions of this policy. In addition to requirements below, employees will:

- maintain a valid driver's license, acceptable driving record. Any changes in your driving record, including, but not limited to, driving infractions or changes to your insurance policy, must be reported to the Company. Any driving infractions will trigger a motor vehicle department check of your license.
- complete and provide necessary records to their manager in a timely manner.
- ✓ • cooperate with managers during vehicle spot-checks.
- immediately tell their manager of any relevant changed circumstances (for example, licence suspension, new or different vehicle, vehicle not available for use, changes to vehicle insurance coverage, etc.).
- immediately report the loss of the company provided E-Z Pass to the President, includes his designated representative.

Vehicle Criteria

The President, includes his designated representative, will apply the following criteria before approving any employee-owned vehicle for work use. The vehicle:

- must be suitably designed / configured and equipped for its intended use.
- must satisfy requirements of the *Motor Vehicle Act* and other applicable statutes.
- must be in sound mechanical condition. For vehicles more than five years old, Johnstone Supply of CNY may require the employee to provide a thorough inspection report from a licensed mechanic.
- must be equipped with an anti-lock braking system and electronic stability control.
- if a 2011 or newer model, must have an National Highway Traffic Safety Administration (NHTSA) overall crash rating of four or five stars.
- must not have features or modifications that negatively influence vehicle handling dynamics or safety (lift kits, after-market bumpers, non-standard wheels or tires, etc.), driver visibility (dark window tints, stickers

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Employee-Owned/Leased Vehicles

on windows) or compromise the company image (paint scheme or graphics).

- should not be more than 10 years old or have more than 300,000 miles. The President, includes his designated representative, will consider the nature and extent of intended vehicle use and may approve vehicles that do not meet these criteria.

Licensing and Insurance

Before using their vehicle for work, each employee will properly register, license and insure their vehicle, including:

- provide management with a current proof of insurance statement or card.
- ~~add Johnstone Supply of CNY to car insurance binder~~ - no, See Attachments *RES*
- liability insurance coverage of at least \$1 million, plus collision and comprehensive coverage with deductibles of not more than \$1,000.00.
- correct rate class coverage.
- Each employee will:
 - have, maintain and renew insurance coverage while the vehicle is used for work.
 - Provide Johnstone Supply of CNY with a copy of the current insurance documents before using the vehicle for work and when the policy is renewed or changed.

If an employee is in a high-risk pool for their driving record, please see Addendum A.

Monthly Vehicle Inspection and Maintenance

Each employee will inspect and maintain their vehicle consistent with legal requirements, and Johnstone Supply of CNY's procedures. The employee will:

- inspect the vehicle according to steps described in the Monthly Vehicle Checklist.
- record inspection results using the Monthly Vehicle Checklist, and provide completed Logs to their manager on request, and at least quarterly.
- ensure the vehicle is maintained consistent with manufacturer recommendations (as described in the vehicle owner's manual) using a licensed mechanic where appropriate.

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Employee-Owned/Leased Vehicles

- provide maintenance records to their manager on request, and at least annually. *Note: maintenance intervals are determined by vehicle mileage and time. Johnstone Supply of CNY should receive and review maintenance records at least annually, and as often as quarterly, depending on how much the vehicle is used - overall, and for work-related purposes.*

General Driving Requirements

At all times, the employee will operate their vehicle consistent with legal requirements and Johnstone Supply of CNY procedures. The employee will:

- operate the vehicle in a manner that meets requirements in the *Motor Vehicle Act* and its *Regulations*, the *Workers Compensation Act* and the *Occupational Health and Safety Regulation*, and other driving laws.
- in winter, equip the vehicle with competent winter tires (e.g. sufficient tread depth).
- comply with driving practices explained in our following procedures.
 1. Safe Driving Practices - general driving rules, planning your route, etc.
 2. Cell Phone Usage & Texting While Driving & Distracted Driving – managing smartphones and other distractions.

If you use your personal vehicle in the course and scope of employment, you may not operate such vehicle while:

- Under the influence of drugs, alcohol, or any other substance that might impair your judgment or ability to drive; or
- Texting, emailing, or otherwise using a cell phone or other handheld device without utilizing a hands-free device.

Handwritten initials

Emergency Equipment

The vehicle owner is responsible to have in their vehicle a Vehicle Emergency Kit minimally containing items identified in our Vehicle Emergency Kit List, and to maintain that Kit as described on the List.

Incident Reporting and Investigations

If involved in a motor vehicle incident, employees will cooperate to help Johnstone Supply of CNY meet its obligations, and to take steps to prevent future occurrences. The employee will:

- immediately report crashes to their manager.

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Employee-Owned/Leased Vehicles

- complete the Report of Motor Vehicle Accident Form and submit it to their manager.
- cooperate with their manager to complete necessary reports (e.g. to Employee Injury Report if the crash results in injuries to any person).
- be willing to participate in the incident investigation, and work with the investigation team to facilitate the investigation, report and corrective measures.

Operating Expenses and Reimbursement

Johnstone Supply of CNY may, at its discretion, provide a Monthly Car Allowance to employees whose principal duties require extensive business travel. The Monthly Car Allowance, is intended to cover the cost of an automobile, including financing, insurance, maintenance and repairs, fuel, etc. Vehicles operated by those receiving such allowance should be appropriate for business use. As representatives of Johnstone Supply of CNY, those receiving a Monthly Car Allowance are expected to maintain their vehicles and keep them in a safe and clean condition. When operating their vehicles such employees shall observe applicable rules of the road. Monthly Car Allowance payments will be included in the employee's taxable income. No mileage reimbursement shall be paid to employees receiving a Monthly Car Allowance for business travel.

The Monthly Car Allowance amount is \$575.00 for full-time employees who use their own vehicles for business.

Signatures

I have read and understand the terms and conditions of this policy and agree to comply with them.

Employee signature

Date

Supervisor signature

Date

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Attachments:

Monthly Vehicle Checklist
Safe Driving Practices for Employees
Cell Phone Usage & Texting While Driving
Distracted Driving

Vehicle Emergency Kit "Must Haves" List
Report of Motor Vehicle Accident (MV-104)
Employee Accident/Injury Report



Safe Driving Practices for Employees

You are your employer's most valuable asset! The way that you drive says everything about you and your company. Make a positive statement by following these work-related safe driving practices.

Stay Safe

- Always use a seat belt – driver and passenger(s).
- Be well-rested before driving.
- Avoid taking medications that make you drowsy.
- Set a realistic goal for the number of miles that you can drive safely each day.
- If you are impaired by alcohol or any drug, do not drive.

Stay Focused

- Driving requires your full attention. Avoid distractions, such as adjusting the radio or other controls, eating or drinking, and talking on the phone.
- Continually search the roadway to be alert to situations requiring quick action.
- Stop about every two hours for a break.
- Get out of the vehicle to stretch, take a walk, and get refreshed.

Avoid Aggressive Driving

- Keep your cool in traffic!
- Be patient and courteous to other drivers.
- Do not take other drivers' actions personally.
- Reduce your stress by planning your route ahead of time (bring the maps and directions), allowing plenty of travel time, and avoiding crowded roadways and busy driving times.

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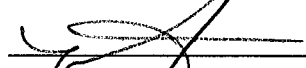
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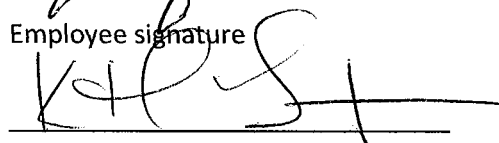
Safe Driving Practices for Employees

Signatures

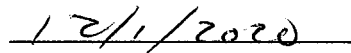
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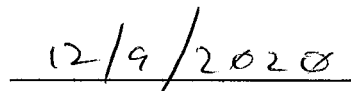
Employee signature



Supervisor signature



Date



Date

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Cell Phone Usage & Texting While Driving

Never text while driving. It can wait!

Make our roads safer and save lives. Be smart and familiarize yourself with the special "Texting Zone" locations along the New York State Thruway and State Highways.

Under New York State law you cannot use a hand-held mobile telephone or portable electronic device while you drive. Illegal activity includes holding a portable electronic device and

- talking on a handheld mobile telephone
- composing, sending, reading, accessing, browsing, transmitting, saving, or retrieving electronic data such as e-mail, text messages, or webpages
- viewing, taking, or transmitting images
- playing games

If you use a portable electronic device while you drive (except to call 911 or to contact medical, fire or police personnel about an emergency), you can receive a traffic ticket and be subject to a fine and a surcharge.

Conviction of a cell phone use, portable electronic device use or a texting violation will also result in points being added to your DMV driving record. If you receive 11 points in an 18-month period, your driver license may be suspended. To learn more, see [About the NY State Driver Point System.](#)

Restrictions for Motor Carriers and Commercial Vehicle Drivers

- a motor carrier must not allow or require their drivers to use cell phones or texting devices while driving
- a mobile telephone used by a person who operates a commercial motor vehicle shall not be deemed a "hands-free mobile telephone" when the driver presses more than a single button to dial or answer the phone
- a commercial vehicle driver is not allowed to make a phone call or use a texting device while the vehicle is temporarily stationary because of traffic, a traffic control device, or other momentary delays
- a commercial vehicle driver who holds a mobile telephone to, or in the immediate proximity of, his or her ear while the vehicle is temporarily stationary because of traffic, a traffic control
- device, or other momentary delays is also presumed to be engaged in a call

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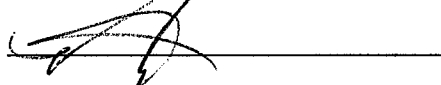


Cell Phone Usage & Texting While Driving- continued

- a commercial vehicle driver who holds a portable electronic device in a conspicuous manner while the vehicle is temporarily stationary because of traffic, a traffic control device, or other momentary delays is presumed to be using the device.

Signatures

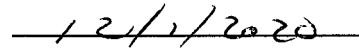
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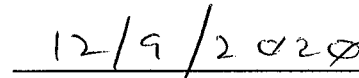
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Date

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Distracted Driving

The Number One Contributing Factor to Motor Vehicle Crashes in NYS

According to a study conducted by the National Highway Traffic Safety Administration (NHTSA), driver inattention is defined as one of the following:

- Driver engagement in secondary tasks
- Driver drowsiness
- Driving-related inattention to the forward roadway
- Non-specific eye glance away from the forward roadway

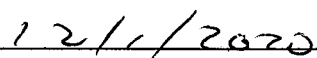
In recent years, the most frequent form of distraction while driving has been due to cell phone use and texting. Almost 80% of crashes and 65% of near crashes in this study involved the driver looking away from the forward roadway just prior to the crash:

- Looking away for two or more seconds will double the risk of a crash or near crash.
- Driver inattention due to drowsiness will increase the risk of a crash or near crash by at least four times.
- A driver who is engaged in a secondary task while driving also increases their risk factor.
- The following actions: talking, listening or dialing a hand-held device; inserting or retrieving a compact disc; operating a PDA; reading, applying makeup or eating will increase the driver risk factor of a crash or near crash by two to three times.

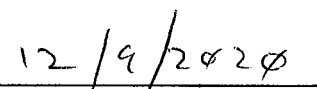
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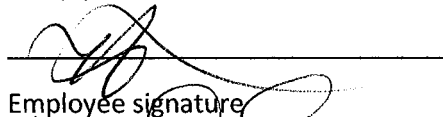


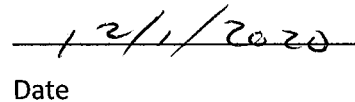
Vehicle Emergency Kit "Must Haves" List

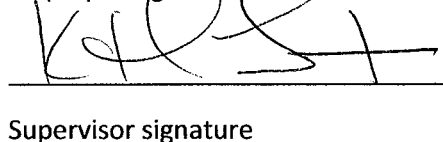
- Roadside warning flares/glowsticks (4)
- Spare tire, jack, lug wrench
- First aid supplies kit
- Vehicle fire extinguisher (ABC type)
- Pen and paper
- Flashlight
- Communication Device

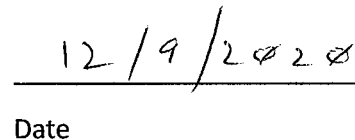
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Re: GMC Terrain Insurance

Jennifer Abulencia <freyagency1@gmail.com>

Mon 11/23/2020 11:44 AM

To: Bob Spanfelner <bspanfelner@outlook.com>

NYCM said they will not add any employers on to a personal auto. I guess then you would have to have a different policy.

Jennifer

Frey agency

315-633-9684

Fax 315-633-8851
